



Town and Country Planning (Minerals) Act 1981

1981 CHAPTER 36

An Act to make amendments relating to the winning and working of minerals in the Town and Country Planning Act 1971 and the Town and Country Planning (Scotland) Act 1972 and amendments relating to rights for the purpose of the conveyance of minerals in section 2 of the Mines (Working Facilities and Support) Act 1966; and for connected purposes. [27th July 1981]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

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ENGLAND AND WALES

General definitions relating to mineral working

1.—(1) The following subsection shall be inserted after subsection (3) of section 22 (meaning of “development” and “new development”) of the Town and Country Planning Act 1971—

Meaning of
“development”.

“(3A) For the purposes of this Act mining operations include—

1971 c. 78.

(a) the removal of material of any description—

- (i) from a mineral-working deposit ;
- (ii) from a deposit of pulverised fuel ash or other furnace ash or clinker ; or
- (iii) from a deposit of iron, steel or other metallic slags ; and

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(b) the extraction of minerals from a disused railway embankment.”.

(2) The following subsection shall be inserted after section 264(1) of that Act (power to modify Act in relation to minerals)—

“(1A) In this Act—

“development consisting of the winning and working of minerals” includes the extraction of minerals from a mineral-working deposit; and

“mineral-working deposit” means any deposit of material remaining after minerals have been extracted from land or otherwise deriving from the carrying out of operations for the winning and working of minerals in, on or under land.”.

Distribution
of planning
functions.
1972 c. 70.

2.—(1) The following paragraph shall be inserted after paragraph 32 of Schedule 16 to the Local Government Act 1972 (by virtue of which applications, orders and notices relating to certain operations for the winning and working of minerals in, on or under land are included among county matters)—

“32A. In paragraph 32 above “the winning and working of minerals” includes the extraction of minerals from a mineral-working deposit, as defined in section 264(1A).”.

1971 c. 78.

(2) The following subsection shall be inserted after section 1(2A) of the Town and Country Planning Act 1971 (local planning authorities)—

“(2B) In this Act “mineral planning authority” means, in respect of any site outside Greater London, the county planning authority within whose area it is situated.”.

(3) The following shall be inserted after paragraph 4A of Schedule 3 to that Act (local planning authorities in Greater London)—

“The mineral planning authority

4B. In this Act “mineral planning authority” means, in respect of any site in Greater London, the authority who are the local planning authority in respect of the class of development in question in the area in which the site is situated.”.

(4) In paragraph 24 of Schedule 16 to the Local Government Act 1972 (which provides for the distribution of certain functions, including the service of enforcement notices under section

87 of the Town and Country Planning Act 1971 and stop notices under section 90 of that Act, between the district planning authority and the county planning authority)—

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- (a) in sub-paragraph (1), for the words " sub-paragraph (2) " there shall be substituted the words " sub-paragraphs (2) to (4) " ;
- (b) in sub-paragraph (3), for the word " Those " there shall be substituted the words " Subject to sub-paragraph (4) below, those " ; and
- (c) the following sub-paragraph shall be added after that sub-paragraph :—

" (4) In relation to a matter which is a county matter by virtue of any of the provisions of paragraph 32(a) to (cd) below the functions of a local planning authority specified in sub-paragraph (1)(b) above shall only be exercisable by the county planning authority in their capacity as mineral planning authority."

Reviews of workings

3. The following section shall be inserted after section 264 of the Town and Country Planning Act 1971—

Periodical reviews of mineral workings.

" Duty of planning authorities to review mineral workings.

264A.—(1) It shall be the duty of every mineral planning authority—

- (a) to undertake at such intervals as they consider fit reviews of every site in their area in, on or under which operations for the winning and working of minerals—
 - (i) are being carried out ; or
 - (ii) have been carried out at any time during the relevant period ; or
 - (iii) are authorised by planning permission but have not been begun ; and
- (b) to make in respect of any such site any order under section 45, 51, 51A or 51B of this Act that they consider appropriate.

(2) In subsection (1) of this section " the relevant period ", in relation to a review, means the period of five years preceding the date of the beginning of the review or such other period as may be prescribed."

Miscellaneous amendments

4.—(1) The following paragraph shall be inserted after paragraph (c) of section 27(1) of that Act (which precludes a local planning authority from entertaining an application for planning permission.

Notification of applications for planning permission.

PART I permission unless it is accompanied by the appropriate certificate)—

“(cc) in the case of an application for planning permission for development consisting of the winning and working of minerals by underground mining operations, a certificate stating—

(i) that the applicant has given the requisite notice of the application to such one or more of the persons mentioned in paragraph (b) of this subsection as are specified in the certificate, and setting out the names of those persons, the addresses at which notice of the application was given to them respectively, and the date of service of each such notice ;

(ii) that there is no person mentioned in paragraph (b) of this subsection whom the applicant knows to be such a person and whose name and address is known to the applicant but to whom he has not given the requisite notice of the application ; and

(iii) that he has complied with subsection (2A) of this section and when he did so ;”.

(2) The following subsections shall be inserted after that subsection—

“(1A) Subject to subsection (1B) of this section, subsection (1) of this section shall have effect as respects notice of an application for planning permission for development consisting of the winning and working of minerals as if any person entitled to an interest in a mineral in the land to which the application relates were an owner of the land.

(1B) Subsection (1) of this section shall not have effect as provided by subsection (1A) of this section in relation to a person entitled to an interest in—

(a) oil, gas or coal ; or

(b) gold or silver.”.

(3) In subsection (2) of that section after “ (c) ” there shall be inserted “ , paragraph (cc) ”.

(4) The following subsections shall be inserted after that subsection—

“(2A) In order to comply with this subsection the applicant must—

(a) post the requisite notice of the application, sited and displayed in such a way as to be easily visible and legible by members of the public, in at least one place in every parish or community within which there is situated any part of the land to which the application relates ; and

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- (b) leave the notice in position for not less than seven days in the period of 21 days immediately preceding the making of the application to the local planning authority.

(2B) The applicant shall not be treated as unable to comply with subsection (2A) of this section if the notice is, without any fault or intention of his, removed, obscured or defaced before the seven days referred to in subsection (2A)(b) of this section have elapsed, so long as he has taken reasonable steps for its protection and, if need be, replacement; and, if he has cause to rely on this subsection, his certificate under subsection (1)(cc) of this section shall state the relevant circumstances.

(2C) The notice required by subsection (2A) of this section shall (in addition to any other matters required to be contained in it) name a place within the area of the local planning authority to whom the application is made where a copy of the application for planning permission, and of all plans and other documents submitted with it, will be open to inspection by the public at all reasonable hours during such period as may be specified in the notice, being a period of not less than 21 days beginning with the date on which the notice is first posted."

5. The following section shall be inserted after section 30 of that Act—

"Aftercare conditions on permission for winning and working of minerals.

30A.—(1) Where planning permission for development consisting of the winning and working of minerals is granted subject to a restoration condition, it may be granted subject also to any such aftercare condition as the mineral planning authority think fit.

Imposition of aftercare conditions on planning permission.

(2) In this Act—

"restoration condition" means a condition requiring that after operations for the winning and working of minerals have been completed, the site shall be restored by the use of any or all of the following, namely, subsoil, topsoil and soil-making material; and

"aftercare condition" means a condition requiring that such steps shall be taken as may be necessary to bring land to the required standard for whichever of the following uses is specified in the condition, namely—

- (a) use for agriculture;
- (b) use for forestry; or
- (c) use for amenity.

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(3) An aftercare condition may either—

- (a) specify the steps to be taken ; or
- (b) require that the steps be taken in accordance with a scheme (in this section referred to as an “aftercare scheme”) approved by the mineral planning authority.

(4) A mineral planning authority may approve an aftercare scheme in the form in which it is submitted to them or may modify it and approve it as modified.

(5) The steps that may be specified in an aftercare condition or an aftercare scheme may consist of planting, cultivating, fertilising, watering, draining or otherwise treating the land.

(6) Where a step is specified in a condition or a scheme, the period during which it is to be taken may also be specified, but no step may be required to be taken after the expiry of the aftercare period.

(7) In subsection (6) of this section “the aftercare period” means a period of five years from compliance with the restoration condition or such other maximum period after compliance with that condition as may be prescribed ; and in respect of any part of a site, the aftercare period shall commence on compliance with the restoration condition in respect of that part.

(8) The power to prescribe maximum periods conferred by subsection (7) of this section includes power to prescribe maximum periods differing according to the use specified.

(9) In a case where—

- (a) the use specified is a use for agriculture ; and
- (b) the land was in use for agriculture at the time of the grant of the planning permission or had previously been used for that purpose and had not at the time of the grant been used for any authorised purpose since its use for agriculture ceased ; and
- (c) the Minister has notified the mineral planning authority of the physical characteristics of the land when it was last used for agriculture,

the land is brought to the required standard when its physical characteristics are restored, so far as it is practicable to do so, to what they were when it was last used for agriculture.

(10) In any other case where the use specified is a use for agriculture, the land is brought to the required standard when it is reasonably fit for that use.

(11) Where the use specified is a use for forestry, the land is brought to the required standard when it is reasonably fit for that use.

(12) Where the use specified is a use for amenity, the land is brought to the required standard when it is suitable for sustaining trees, shrubs or plants.

(13) Before imposing an aftercare condition, the mineral planning authority shall consult—

- (a) the Minister, where they propose that the use specified in the condition shall be a use for agriculture ; and
- (b) the Forestry Commission, where they propose that the use so specified shall be a use for forestry,

as to whether it is appropriate to specify that use.

(14) Where after consultations required by subsection (13) of this section the mineral planning authority are satisfied that the use that they ought to specify is a use for agriculture or for forestry, they shall consult—

- (a) where it is for agriculture, the Minister ; and
- (b) where it is for forestry, the Forestry Commission,

with regard to whether the steps to be taken should be specified in the aftercare condition or in an aftercare scheme.

(15) The mineral planning authority shall also consult the Minister or the Forestry Commission, as the case may be,—

- (a) as to the steps to be specified in an aftercare condition which specifies a use for agriculture or for forestry ; and
- (b) before approving an aftercare scheme submitted in accordance with an aftercare condition which specifies such a use.

(16) The mineral planning authority shall also, from time to time as they consider expedient, consult the Minister or the Commission, as the case may be, as to whether the steps specified in an aftercare condition or an aftercare scheme are being taken.

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(17) On the application of any person with an interest in land in respect of which an aftercare condition has been imposed the mineral planning authority, if they are satisfied that the condition has been complied with, shall issue a certificate to that effect.

(18) A person who has complied with an aftercare condition but who has not himself carried out any operations for the winning and working of minerals in, on or under the land shall be entitled, subject to any condition to the contrary contained in a contract which is enforceable against him by the person who last carried out such operations, to recover from that person any expenses reasonably incurred in complying with the aftercare condition.

(19) In this section—

“authorised” means authorised by planning permission ;

“forestry” means the growing of a utilisable crop of timber ; and

“the Minister” means—

(i) in relation to England, the Minister of Agriculture, Fisheries and Food ; and

(ii) in relation to Wales, the Secretary of State.”.

Exclusion of certain planning permissions for winning and working of minerals from s. 41.

6. The following paragraph shall be inserted after paragraph (b) of section 41(3) of that Act—

“(bb) to any planning permission for development consisting of the winning and working of minerals which is granted (or deemed to be granted) subject to a condition that the development to which it relates must be begun before the expiration of a specified period after the completion of other development consisting of the winning and working of minerals which is already being carried out by the applicant for the planning permission.”.

Duration of planning permission.

7. The following section shall be inserted after section 44 of that Act—

“Limit of duration of planning permission for winning and working of minerals.

44A.—(1) Every planning permission for development consisting of the winning and working of minerals shall be subject to a condition as to the duration of the development.

(2) Except where a condition is specified under subsection (3) of this section the condition in the

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case of planning permission granted or deemed to be granted after the date of the commencement of section 7 of the Town and Country Planning (Minerals) Act 1981 is that the development must cease not later than the expiration of the period of sixty years beginning with the date of the permission.

(3) An authority granting planning permission after the date of the commencement of the said section 7 or directing after that date that planning permission shall be deemed to be granted may specify a longer or shorter period than sixty years, and if they do so, the condition is that the development must cease not later than the expiration of a period of the specified length beginning with the date of the permission.

(4) A longer or shorter period than sixty years may be prescribed for the purposes of subsections (2) and (3) of this section.

(5) The condition in the case of planning permission granted or deemed to have been granted before the commencement of section 7 of the Town and Country Planning (Minerals) Act 1981 is that the development must cease not later than the expiration of the period of sixty years beginning with the date of the commencement of that section.

(6) A condition to which planning permission for development consisting of the winning and working of minerals is subject by virtue of this section is not to be regarded for the purposes of this Act as a condition such as is mentioned in subsection (1)(b) of section 30 of this Act.

(7) Where planning permission for development consisting of the winning and working of minerals is granted by the mineral planning authority, any condition to which it is subject by virtue of this section is to be regarded for the purposes of section 36 of this Act as a condition imposed by a decision of the local planning authority, and may accordingly be the subject of an appeal under that section.”.

8. The following subsections shall be added at the end of section 45 of that Act (power to revoke or modify planning permission)—

“ (5) References to the local planning authority in this section are to be construed, in relation to development consisting of the winning and working of minerals, as references to the mineral planning authority.

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revoking or
modifying
planning
permission.

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(6) An order under this section may include any such after-care condition as the mineral planning authority think fit if—

(a) it also includes a restoration condition ; or

(b) a restoration condition has previously been imposed in relation to the land by virtue of any provision of this Act.

(7) Subsections (3) to (19) of section 30A of this Act shall apply in relation to an aftercare condition so imposed as they apply in relation to such a condition imposed under that section.”.

Dis-
continuance
of use.

9. The following subsections shall be inserted after subsection (1) of section 51 of that Act (which empowers a local planning authority to make orders, in the interests of the proper planning of their area, requiring that a use of land shall be discontinued or imposing conditions on the continuance of a use)—

“ (1A) For the purposes of this section development consisting of the winning and working of minerals in, on or under any land is to be treated as a use of that land.

(1B) References in this section to the local planning authority are to be construed, in relation to development consisting of the winning and working of minerals, as references to the mineral planning authority.

(1C) Subsection (1) of this section shall have effect in relation to the mineral planning authority as if—

(a) the words “ or

(c) that any plant or machinery used for the winning and working of minerals should be altered or removed,”

were added at the end of paragraph (b) ; and

(b) the words “ or plant or machinery ” were inserted after the words “ buildings or works ”, in the second place where those words occur.

(1D) Where development consisting of the winning and working of minerals is being carried out in, on or under any land, the conditions which an order under this section may impose include a restoration condition.

(1E) An order under this section may include any such aftercare condition as the mineral planning authority think fit if—

(a) it also includes a restoration condition ; or

(b) a restoration condition has previously been imposed in relation to the land by virtue of any provision of this Act.

(1F) Subsections (3) to (8) and (11) to (19) of section 30A of this Act shall apply in relation to an aftercare condition imposed under this section as they apply in relation to such a condition imposed under that section.

(1G) In a case where—

- (a) the use specified is a use for agriculture ; and
- (b) the land was in use for agriculture immediately before development consisting of the winning and working of minerals began to be carried out in, on or under it or had previously been used for agriculture and had not been used for any authorised purpose since its use for agriculture ceased ; and
- (c) the Minister has notified the mineral planning authority of the physical characteristics of the land when it was last used for agriculture,

the land is brought to the required standard when its physical characteristics are restored, so far as it is practicable to do so, to what they were when it was last used for agriculture.

(1H) In any other case where the use specified is a use for agriculture, the land is brought to the required standard when it is reasonably fit for that use.”.

10. The following sections shall be inserted after section 51 of that Act—

“ Prohibition of resumption of winning and working of minerals.

51A.—(1) Where it appears to the mineral planning authority—

- (a) that development consisting of the winning and working of minerals has been carried out in, on or under any land ; but
- (b) that it has permanently ceased,

the mineral planning authority may by order—

- (i) prohibit the resumption of such development ; and
- (ii) impose, in relation to the site, any such requirement as is specified in subsection (3) of this section.

(2) The mineral planning authority may assume that development consisting of the winning and working of minerals has permanently ceased only when—

- (a) no such development has been carried out to any substantial extent anywhere in, on or under the site of which the land forms part for a period of at least two years ; and

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(b) it appears to the mineral planning authority, on the evidence available to them at the time when they make the order, that resumption of such development in, on or under the land is unlikely.

(3) The requirements mentioned in subsection (1) of this section are—

(a) a requirement to alter or remove plant or machinery which was used for the purpose of the winning and working of minerals or for any purpose ancillary to that purpose ;

(b) a requirement to take such steps as may be specified in the order, within such period as may be so specified, for the purpose of removing or alleviating any injury to amenity which has been caused by the winning and working of minerals, other than injury due to subsidence caused by underground mining operations ;

(c) a requirement that any condition subject to which planning permission for development consisting of the winning and working of minerals was granted or which has been imposed by virtue of any provision of this Act shall be complied with ; and

(d) a restoration condition.

(4) An order under this section may include any such aftercare condition as the mineral planning authority think fit if—

(a) it also includes a restoration condition ; or

(b) a restoration condition has previously been imposed in relation to the site by virtue of any provision of this Act.

(5) Subsections (3) to (8) and (11) to (19) of section 30A of this Act shall apply in relation to an aftercare condition imposed under this section as they apply in relation to such a condition imposed under that section.

(6) In a case where—

(a) the use specified is a use for agriculture ;
and

(b) the land was in use for agriculture immediately before development consisting of the winning and working of minerals began to be carried out in, on or under it or had

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previously been used for agriculture and had not been used for any authorised purpose since its use for agriculture ceased ; and

- (c) the Minister has notified the mineral planning authority of the physical characteristics of the land when it was last used for agriculture,

the land is brought to the required standard when its physical characteristics are restored, so far as it is practicable to do so, to what they were when it was last used for agriculture.

(7) In any other case where the use specified is a use for agriculture, the land is brought to the required standard when it is reasonably fit for that use.

(8) An order under this section shall not take effect unless it is confirmed by the Secretary of State, either without modification or subject to such modifications as he considers expedient.

(9) Where a mineral planning authority submit an order under this section to the Secretary of State for his confirmation under this section, that authority shall serve notice of the order on any person who is an owner or occupier of any of the land to which the order relates, and on any other person who in their opinion will be affected by the order ; and if within the period specified in that behalf in the notice (not being less than twenty-eight days from the service thereof) any person on whom the notice is served so requires, the Secretary of State, before confirming the order, shall afford to that person and to the mineral planning authority an opportunity of appearing before, and being heard by, a person appointed by the Secretary of State for that purpose.

(10) Where an order under this section has been confirmed by the Secretary of State, the mineral planning authority shall serve a copy of the order on every person who was entitled to be served with notice under subsection (9) of this section.

(11) On an order under this section taking effect any planning permission for the development to which the order relates shall cease to have effect but without prejudice to the power of the mineral planning authority, on revoking the order, to make a further grant of planning permission for development consisting of the winning and working of minerals.

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after
suspension of
winning and
working of
minerals.

51B.—(1) Where it appears to the mineral planning authority—

(a) that development consisting of the winning and working of minerals has been carried out in, on or under any land ; but

(b) that it has been temporarily suspended,
the mineral planning authority may by order (in this Act referred to as a “suspension order”) require that steps shall be taken for the protection of the environment.

(2) The mineral planning authority may assume that development consisting of the winning and working of minerals has been temporarily suspended only when—

(a) no such development has been carried out to any substantial extent anywhere in, on or under the site of which the land forms part for a period of at least twelve months ; but

(b) it appears to the mineral planning authority, on the evidence available to them at the time when they make the order, that a resumption of such development in, on or under the land is likely.

(3) In this Act “steps for the protection of the environment” means steps for the purpose—

(a) of preserving the amenities of the area in which the land in, on or under which the development was carried out is situated during the period while operations for the winning and working of minerals in, on or under it are suspended ;

(b) of protecting that area from damage during that period ; or

(c) of preventing any deterioration in the condition of the land during that period.

(4) A suspension order shall specify a period, commencing with the date on which it is to take effect, within which any required step for the protection of the environment is to be taken and may specify different periods for the taking of different steps.

(5) At any time when a suspension order is in operation the mineral planning authority may by

order (in this Act referred to as a "supplementary suspension order") direct—

- (a) that steps for the protection of the environment shall be taken in addition to or in substitution for any of the steps which the suspension order or a previous supplementary suspension order specified as required to be taken ; or
- (b) that the suspension order or any supplementary suspension order shall cease to have effect.

Confirmation and coming into operation of suspension orders.

51C.—(1) Subject to subsection (2) of this section, a suspension order or a supplementary suspension order shall not take effect unless it is confirmed by the Secretary of State, either without modification or subject to such modifications as he considers expedient.

(2) A supplementary suspension order revoking a suspension order or a previous supplementary suspension order and not requiring that any fresh step shall be taken for the protection of the environment shall take effect without confirmation.

(3) Subsection (9) of section 51A of this Act shall have effect in relation to a suspension order or supplementary suspension order submitted to the Secretary of State for his confirmation as it has effect in relation to an order submitted to him for his confirmation under that section.

(4) Where a suspension order or supplementary suspension order has been confirmed by the Secretary of State, the mineral planning authority shall serve a copy of the order on every person who was entitled to be served with notice by virtue of subsection (3) of this section.

Registration of suspension orders as local land charges.

51D. A suspension order or a supplementary suspension order shall be a local land charge.

Reviews of suspension orders.

51E.—(1) It shall be the duty of a mineral planning authority—

- (a) to undertake in accordance with the following provisions of this section reviews of suspension orders and supplementary suspension orders which are in operation in their area ; and

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(b) to determine whether they should make, in relation to any land to which a suspension order or supplementary suspension order applies,—

(i) an order under section 51A of this Act; or

(ii) a supplementary suspension order.

(2) The first review of a suspension order shall be undertaken not more than five years from the date on which the order takes effect.

(3) Each subsequent review shall be undertaken not more than five years after the previous review.

(4) If a supplementary suspension order is in operation for any part of the area for which a suspension order is in operation, they shall be reviewed together.

(5) If a mineral planning authority have made a supplementary suspension order which requires the taking of steps for the protection of the environment in substitution for all the steps required to be taken by a previous order under section 51B of this Act, the authority shall undertake reviews of the supplementary suspension order in accordance with subsections (6) and (7) of this section.

(6) The first review shall be undertaken not more than five years from the date on which the order takes effect.

(7) Each subsequent review shall be undertaken not more than five years after the previous review.

(8) The duties to undertake reviews imposed by this section are in addition to and not in substitution for the duties imposed by section 264A of this Act.

Resumption
of winning
and working
of minerals
after
suspension
order.

51F.—(1) Nothing in a suspension order or a supplementary suspension order shall prevent the recommencement of development consisting of the winning and working of minerals in, on, or under the land in relation to which the order is in effect; but no person shall recommence such development without first giving the mineral planning authority notice of his intention to do so.

(2) A notice under subsection (1) of this section shall specify the date on which the person giving the notice intends to recommence development consisting of the winning and working of minerals.

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(3) The mineral planning authority shall revoke the order if development consisting of the winning and working of minerals has recommenced to a substantial extent in, on or under the land in relation to which the order is in effect.

(4) If the authority do not revoke the order before the end of the period of two months from the date specified in the notice under subsection (1) of this section, the person who gave that notice may apply to the Secretary of State for the revocation of the order.

(5) Notice of an application under subsection (4) of this section shall be given by the applicant to the mineral planning authority.

(6) If he is required to do so by the person who gave the notice or by the mineral planning authority, the Secretary of State, before deciding whether to revoke the order, shall afford to that person and to the mineral planning authority an opportunity of appearing before, and being heard by, a person appointed by the Secretary of State for the purpose.

(7) If the Secretary of State is satisfied that development consisting of the winning and working of minerals in, on or under the land has recommenced to a substantial extent, he shall revoke the order.

(8) If the Secretary of State revokes an order by virtue of subsection (7) of this section, he shall give notice of its revocation to the person who applied to him for the revocation and to the mineral planning authority."

11. The following section shall be substituted for section 108 of that Act—

"Enforcement of orders under sections 51, 51A and 51B.

108.—(1) Any person who, without the grant of planning permission in that behalf,—

(a) uses land, or causes or permits land to be used—

(i) for any purpose for which an order under section 51 of this Act has required that its use shall be discontinued ; or

(ii) in contravention of any condition imposed by such an order by virtue of subsection (1) of that section ; or

(b) resumes, or causes or permits to be resumed, development consisting of the winning and

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working of minerals the resumption of which an order under section 51A of this Act has prohibited ; or

(c) contravenes, or causes or permits to be contravened, any such requirement as is specified in section 51A(3) or (4) of this Act, shall be guilty of an offence.

(2) Any person who contravenes any requirement of a suspension order or a supplementary suspension order or who causes or permits any requirement of such an order to be contravened shall be guilty of an offence.

(3) Any person guilty of an offence under this section shall be liable—

(a) on summary conviction to a fine not exceeding the statutory maximum ; and

(b) on conviction on indictment, to a fine.

(4) If—

(a) any step required by an order under section 51 of this Act to be taken for the alteration or removal of any buildings or works or any plant or machinery ; or

(b) any step required by an order under section 51A of this Act to be taken—

(i) for the alteration or removal of plant or machinery ; or

(ii) for the removal or alleviation of any injury to amenity ; or

(c) any step for the protection of the environment required to be taken by a suspension order or a supplementary suspension order,

has not been taken within the period specified in the order, or within such extended period as the local planning authority may allow, the local planning authority may enter the land and take that step, and may recover from the person who is then the owner of the land any expenses reasonably incurred by them in doing so ; and section 276 of the Public Health Act 1936 shall apply in relation to any works executed by a local planning authority under this subsection as it applies in relation to works executed by a local authority under that Act.

(5) The references to the local planning authority in subsection (4) of this section are to be construed as references to the mineral planning authority—

- (a) in relation to an order under section 51 of this Act requiring that any buildings or works or plant or machinery used for the winning and working of minerals shall be altered or removed ; and
- (b) in relation to any step required to be taken as mentioned in paragraphs (b) and (c) of subsection (4) of this section.

(6) It shall be a defence for a person charged with an offence under this section to prove that he took all reasonable measures and exercised all due diligence to avoid commission of the offence by himself or by any person under his control.

(7) If in any case the defence provided by subsection (6) of this section involves an allegation that the commission of the offence was due to the act or default of another person or due to reliance on information supplied by another person, the person charged shall not, without the leave of the court, be entitled to rely on the defence unless, within a period ending seven clear days before the hearing, he has served on the prosecutor a notice in writing giving such information identifying or assisting in the identification of the other person as was then in his possession.”.

Compensation

12. In subsection (1) of section 164 of that Act (which gives persons interested in land a right to compensation where planning permission is revoked or modified by an order under section 45) after the words “interested in the land” there shall be inserted the words “or a person who is without an interest in the land itself but has an interest in minerals in, on or under it”.

Extension of right to compensation where planning permission revoked or modified.

13. The following section shall be inserted after section 164 of that Act—

“Com-
pensation
for certain
orders
under s. 45
relating to
mineral
working to
be on
special
basis.

164A.—(1) Where mineral compensation requirements are satisfied in relation to an order under section 45 of this Act, section 164 of this Act shall have effect subject to mineral compensation modifications.

Special compensation in respect of orders under s. 45 relating to mineral working.

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(2) Subject to subsection (4) of this section, mineral compensation requirements are satisfied in relation to an order under section 45 of this Act if—

(a) the order modifies planning permission for development consisting of the winning and working of minerals ; and

(b) the order does not—

(i) impose any restriction on the winning and working of minerals ; or

(ii) modify or replace any such restriction subject to which the planning permission was granted or which was imposed by a relevant order ; and

(c) the mineral planning authority carried out special consultations about the making and terms of the order before they made it ; and

(d) either—

(i) the permission was granted not less than five years before the date of the order ; or

(ii) the conditions specified in subsection (3) of this section are satisfied.

(3) The conditions mentioned in subsection (2)(d)(ii) of this section are—

(a) that the planning permission which the order modifies was granted before the commencement of section 30A of this Act ; and

(b) that the order—

(i) imposes an aftercare condition ; and

(ii) does not impose any other condition.

(4) Where the mineral planning authority—

(a) make an order under section 45 of this Act modifying planning permission for development consisting of the winning and working of minerals ; and

(b) have previously made a relevant order or orders,

mineral compensation requirements are not satisfied in relation to the order mentioned in paragraph (a) of this subsection unless it was made more than five years after the order previously made or the last such order.”.

14. In subsection (2) of section 170 of that Act (which gives compensation to a person who has suffered damage in consequence of an order under section 51 by depreciation of the value of an interest in the land to which he is entitled, or by being disturbed in his enjoyment of the land) for the words "in the land to which he is entitled, or by being disturbed in his enjoyment of the land" there shall be substituted the words "to which he is entitled in the land or in minerals in, on or under it, or by being disturbed in his enjoyment of the land or of minerals in, on or under it".

PART I
Extension of
right to
compensation
in respect of
orders under
s. 51.

15. The following sections shall be inserted after section 170 of that Act—

"Compensation in respect of orders under s. 51A and suspension orders.

170A. Subject to section 170B of this Act, the provisions of section 170 of this Act shall apply where an order is made under section 51A of this Act or a suspension order or supplementary suspension order is made as they apply where an order is made under section 51 of this Act.

Compensation where resumption of mineral working is prohibited or suspension order is made.

Compensation on special basis.

170B.—(1) Where mineral compensation requirements are satisfied in relation to an order under section 51 or 51A of this Act, or in relation to a suspension order or supplementary suspension order, section 170 or 170A of this Act shall have effect subject to mineral compensation modifications.

(2) Subject to subsection (6) of this section, mineral compensation requirements are satisfied in relation to an order under section 51 of this Act if—

(a) the order—

(i) imposes any conditions on the continuance of the use of land for the winning and working of minerals; or

(ii) requires that any buildings or works or plant or machinery used for the winning and working of minerals shall be altered or removed; and

(b) the conditions specified in subsection (5) of this section are satisfied.

(3) Subject to subsection (6) of this section, mineral compensation requirements are satisfied in relation to an order under section 51A of this Act if the conditions specified in subsection (5)(a) and (c) of this section are satisfied.

(4) Mineral compensation requirements are satisfied in relation to a suspension order or supplementary suspension order if the conditions specified in subsection (5)(c) of this section are satisfied.

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(5) The conditions mentioned in subsections (2)(b), (3) and (4) of this section are—

(a) that development consisting of the winning and working of minerals began not less than five years before the date of the order ;

(b) that the order does not—

(i) impose any restriction on the winning and working of minerals ; or

(ii) modify or replace any such restriction subject to which planning permission for development consisting of the winning and working of minerals was granted or which was imposed by a relevant order ; and

(c) that the mineral planning authority carried out special consultations about the making and terms of the order before they made it.

(6) Where the mineral planning authority—

(a) make—

(i) an order under section 51 of this Act which imposes any such conditions or makes any such requirement as is mentioned in subsection (2)(a) of this section ; or

(ii) an order under section 51A of this Act ; and

(b) have previously made a relevant order or orders,

mineral compensation requirements are not satisfied in relation to the order mentioned in paragraph (a) of this subsection unless it was made more than five years after the order previously made or the last such order.”.

Mineral
compensation
modifications.

16. The following sections shall be inserted after section 178 of that Act—

“Regulations as to compensation in respect of orders relating to mineral working—meaning of “mineral compensation modifications”.

178A.—(1) The Secretary of State may by regulations made with the consent of the Treasury direct that sections 164, 170, 178, 237 and 238 of this Act shall have effect, where mineral compensation requirements are satisfied, subject, in such cases as may be specified in the regulations, to such modifications as may be so specified.

(2) Any such regulations shall make provision as to circumstances in which compensation is not to be payable.

PART I

(3) Any such regulations shall make provision—

(a) for the modification of the basis on which any amount to be paid by way of compensation is to be assessed ; or

(b) for the assessment of any such amount on a basis different from that on which it would otherwise have been assessed.

(4) Regulations made by virtue of subsection (3)(a) of this section in relation to compensation where an order is made under section 45 or 51 of this Act shall provide that the amount of the compensation under section 164 or, as the case may be, 170 of this Act, shall be reduced—

(a) by the prescribed sum ; or

(b) by a sum equal to the prescribed percentage of the appropriate sum.

(5) In subsection (4) of this section “the appropriate sum” means the product of the sum which represents the annual value of the right to win and work minerals at the site to which the order relates and a multiplier which the Secretary of State considers appropriate having regard to the period at the expiration of which the minerals in, on or under that site might be expected to be exhausted if they continued to be extracted at the rate which has been assumed for the purpose of calculating the annual value of the right to win and work them.

(6) The prescribed percentage shall not be more than 10 per cent.

(7) The annual value of the right to win and work the minerals shall be calculated in the prescribed manner.

(8) In this Act “mineral compensation modifications” means modifications specified in regulations made by virtue of this section.

(9) Regulations under this section—

(a) may make different provision for different cases ; and

(b) may include such incidental or supplementary provisions as the Secretary of State considers expedient.

(10) No regulations under this section shall have effect until approved by a resolution of each House of Parliament.

PART I

(11) Before making any such regulations the Secretary of State shall consult such persons or bodies of persons as appear to him to be representative—

- (a) of persons carrying out mining operations ;
- (b) of owners of interests in land containing minerals ; and
- (c) of mineral planning authorities.

Orders relating to mineral working—meaning of “special consultations”.

178B.—(1) Any reference in this Act to a mineral planning authority carrying out special consultations about the making and terms of an order before they make it is a reference to their carrying out consultations—

- (a) subject to subsection (2) of this section, with any person who has an interest—
 - (i) in the land to which the order will relate ; or
 - (ii) in minerals in, on or under that land ; and
- (b) with the relevant authority.

(2) The duty to consult imposed by subsection (1)(a) of this section is only a duty to consult persons whom the mineral planning authority are able to trace by taking reasonable steps to do so.

(3) In subsection (1)(b) above “the relevant authority” means—

- (a) if the land to which the order will relate is outside Greater London, the district council in whose area it is situated ; and
- (b) if it is in Greater London—
 - (i) where the order is to be made by a London borough council, the Greater London Council ; and
 - (ii) where it is to be made by the Greater London Council, the London borough council in whose area the land is situated.

Orders relating to mineral working—meaning of “restriction on the winning and working of minerals” and “relevant order.”

178C.—(1) In this Act “restriction on the winning and working of minerals” means—

- (a) in relation to planning permission granted for development consisting of the winning and working of minerals, a condition subject to which the permission was granted and which made provision to which this section applies ; and

PART I

(b) in relation to an order under section 45 or 51 of this Act, a term of the order which made such provision.

(2) This section applies to—

(a) any provision—

(i) for the period before the expiration of which development consisting of the winning and working of minerals was to be begun ;

(ii) for the size of the area to be used for the winning and working of minerals ;

(iii) for the depth to which operations for the winning and working of minerals were to extend ;

(iv) for the rate at which any particular mineral was to be extracted ; or

(v) for the period at the expiration of which the winning and working of minerals was to cease ; and

(b) any provision whose effect is in any way to restrict the total quantity of minerals to be extracted.

(3) In this Act “relevant order”, in relation to any land, means an order under section 45, 51 or 51A of this Act.”.

17. In subsection (1) of section 179 of that Act (determination of claims for compensation) after the words “this Act”, in the second place where they occur, there shall be inserted the words “including any question of disputed compensation under section 164, 170, 178, 237 or 238 of this Act as modified by regulations under section 178A of this Act ”.

Isles of Scilly

18. Section 269 of that Act (application of provisions of Act to Isles of Scilly) shall have effect as if any provision added to that Act by this Act were included among the provisions specified in Part I of Schedule 21 to that Act (provisions that may be applied to the Isles as if they were a separate county).

PART II

SCOTLAND

General definitions relating to mineral working

19.—(1) The following subsection shall be inserted after sub-section (3) of section 19 (meaning of “development” and “new development”).

PART II
1972 c. 52.

development”) of the Town and Country Planning (Scotland) Act 1972 (in this Part of this Act referred to as “the 1972 Act”)—

“(3A) For the purposes of this Act mining operations include—

(a) the removal of material of any description—

- (i) from a mineral-working deposit ;
- (ii) from a deposit of pulverised fuel ash or other furnace ash or clinker ; or
- (iii) from a deposit of iron, steel or other metallic slags ; and

(b) the extraction of minerals from a disused railway embankment.”.

(2) The following subsection shall be inserted after section 251(1) of that Act (power to modify Act in relation to minerals)—

“(1A) In this Act—

“development consisting of the winning and working of minerals” includes the extraction of minerals from a mineral-working deposit ; and

“mineral-working deposit” means any deposit of material remaining after minerals have been extracted from land or otherwise deriving from the carrying out of operations for the winning and working of minerals in, on or under land.”.

Reviews of workings

20. The following section shall be inserted after section 251 of the 1972 Act—

“Duty of planning authorities to review mineral workings.

251A.—(1) It shall be the duty of every planning authority—

(a) to undertake at such intervals as they consider fit reviews of every site in their area in, on or under which operations for the winning and working of minerals—

- (i) are being carried out ; or
- (ii) have been carried out at any time during the relevant period ; or
- (iii) are authorised by planning permission but have not been begun ; and

(b) to make in respect of any such site any order under section 42, 49, 49A or 49B of this Act that they consider appropriate.

Periodical reviews of mineral workings.

(2) In subsection (1) of this section "the relevant period", in relation to a review, means the period of five years preceding the date of the beginning of the review or such other period as may be prescribed."

Miscellaneous amendments

21.—(1) The following shall be inserted after paragraph (c) of section 24(1) of the 1972 Act (which precludes a planning authority from entertaining an application for planning permission unless it is accompanied by the appropriate certificate)—

Notifications of applications for planning permission.

"(cc) in the case of an application for planning permission for development consisting of the winning and working of minerals by underground mining operations, a certificate stating—

(i) that the applicant has given the requisite notice of the application to such one or more of the persons mentioned in paragraph (b) of this subsection as are specified in the certificate, and setting out the names of those persons, the addresses at which notice of the application was given to them respectively, and the date of service of each such notice ;

(ii) that there is no person mentioned in paragraph (b) of this subsection whom the applicant knows to be such a person and whose name and address is known to the applicant but to whom he has not given the requisite notice of the application ; and

(iii) that he has complied with subsection (2A) of this section and when he did so ;".

(2) The following subsections shall be inserted after that subsection—

"(1A) Subject to subsection (1B) of this section, subsection (1) of this section shall have effect as respects notice of an application for planning permission for development consisting of the winning and working of minerals as if any person entitled to an interest in a mineral in the land to which the application relates were an owner of the land.

(1B) Subsection (1) of this section shall not have effect as provided by subsection (1A) of this section in relation to a person entitled to an interest in—

- (a) oil, gas or coal ; or
- (b) gold or silver."

(3) In subsection (2) of that section, after "(c)" there shall be inserted ", paragraph (cc)".

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(4) The following subsections shall be added after that subsection—

“(2A) In an order to comply with this subsection—

- (a) the applicant must post the requisite notice of the application, sited so as to be easily visible to and legible by members of the public, in at least one place in the district of the planning authority to which the application is being made ; and
- (b) the notice must be in position for not less than 7 days during the period of 21 days prior to the making of the application.

(2B) At any time before granting an application for planning permission for development consisting of the winning and working of minerals the planning authority dealing with the application may in writing direct the applicant to post copies of the said notice in such places in its district not exceeding 4 in number as may be specified in the direction.

(2C) Where any such direction as is mentioned in subsection (2B) above has been given the planning authority shall not grant the application until the applicant has furnished to the authority a certificate stating—

- (a) that he has complied with the direction ; and
- (b) that any notice required by the direction has been in position for not less than 7 days in the period of 21 days prior to the date on which he lodged the certificate with the planning authority.

(2D) The applicant shall not be treated as unable to comply with subsection (2A) or (2C) of this section if the notice or, as the case may be, any copy thereof is, without any fault or intention of his, removed, obscured or defaced before the seven days referred to in subsections (2A)(b) or (2C)(b) of this section have elapsed, so long as he has taken reasonable steps for its protection and, if need be, replacement ; and if he has cause to rely on this subsection, his certificate under subsection (1)(cc) of this section shall state the relevant circumstances.

(2E) The notice required by subsection (2A) of this section shall (in addition to any other matters required to be contained in it) name a place within the area of the planning authority to whom the application is made where a copy of the application for planning permission, and of all plans and other documents submitted with it, will be open to inspection by the public at all reasonable hours

during such period as may be specified in the notice, being a period of not less than 21 days beginning with the date on which the notice is first posted.”.

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22. The following section shall be inserted after section 27 of the 1972 Act—

“ Aftercare conditions on permission for winning and working of minerals.

27A.—(1) Where planning permission for development consisting of the winning and working of minerals is granted subject to a restoration condition, it may be granted subject also to any such aftercare condition as the planning authority think fit.

(2) In this Act—

“ restoration condition ” means a condition requiring that after operations for the winning and working of minerals have been completed, the site shall be restored by the use of any or all of the following, namely, subsoil, topsoil and soil-making material ; and

“ aftercare condition ” means a condition requiring that such steps shall be taken as may be necessary to bring land to the required standard for whichever of the following uses is specified in the condition, namely—

- (a) use for agriculture ;
- (b) use for forestry ; or
- (c) use for amenity.

(3) An aftercare condition may either—

- (a) specify the steps to be taken ; or
- (b) require that the steps be taken in accordance with a scheme (in this section referred to as an “ aftercare scheme ”) approved by the planning authority.

(4) A planning authority may approve an aftercare scheme in the form in which it is submitted to them or may modify it and approve it as modified.

(5) The steps that may be specified in an aftercare condition or an aftercare scheme may consist of planting, cultivating, fertilising, watering, draining or otherwise treating the land.

(6) Where a step is specified in a condition or a scheme, the period during which it is to be taken may also be specified, but no step may be required to be taken after the expiry of the aftercare period.

Imposition
of aftercare
conditions
on planning
permission.

PART II

(7) In subsection (6) of this section "the aftercare period" means a period of five years from compliance with the restoration condition or such other maximum period after compliance with that condition as may be prescribed; and in respect of any part of a site, the aftercare period shall commence on compliance with the restoration condition in respect of that part.

(8) The power to prescribe maximum periods conferred by subsection (7) of this section includes power to prescribe maximum periods differing according to the use specified.

(9) In a case where—

(a) the use specified is a use for agriculture; and

(b) the land was in use for agriculture at the time of the grant of the planning permission or had previously been used for that purpose and had not at the time of the grant been used for any authorised purpose since its use for agriculture ceased; and

(c) the planning authority is aware of or can readily ascertain the physical characteristics of the land when it was last used for agriculture,

the land is brought to the required standard when its physical characteristics are restored, so far as it is practicable to do so, to what they were when it was last used for agriculture.

(10) In any other case where the use specified is a use for agriculture the land is brought to the required standard when it is reasonably fit for that use.

(11) Where the use specified is a use for forestry, the land is brought to the required standard when it is reasonably fit for that use.

(12) Where the use specified is a use for amenity, the land is brought to the required standard when it is suitable for sustaining trees, shrubs or plants.

(13) Before imposing an aftercare condition in a case where the use specified in the condition is for forestry, the planning authority shall consult the Forestry Commission as to whether it is appropriate to specify that use.

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(14) Where after consultations required by subsection (13) of this section the planning authority are satisfied that the use that they ought to specify is a use for forestry, they shall consult the Forestry Commission with regard to whether the steps to be taken should be specified in the aftercare condition or in an aftercare scheme.

(15) The planning authority shall also consult the Forestry Commission—

(a) as to the steps to be specified in an aftercare condition which specifies a use for forestry ; and

(b) before approving an aftercare scheme submitted in accordance with an aftercare condition which specifies such a use.

(16) The planning authority shall also, from time to time as they consider expedient, consult the Commission as to whether the steps specified in an aftercare condition or an aftercare scheme are being taken.

(17) On the application of any person with an interest in land in respect of which an aftercare condition has been imposed the planning authority, if they are satisfied that the condition has been complied with, shall issue a certificate to that effect.

(18) A person who has complied with an aftercare condition but who has not himself carried out any operations for the winning and working of minerals in, on or under the land shall be entitled, subject to any condition to the contrary contained in a contract which is enforceable against him by the person who last carried out such operations, to recover from that person any expenses reasonably incurred by him in complying with the aftercare condition.

(19) In this section “authorised” means authorised by planning permission and “forestry” means the growing of a utilisable crop of timber.”.

23. The following paragraph shall be inserted after paragraph (b) of section 38 (3) of the 1972 Act—

“ (bb) to any planning permission for development consisting of the winning and working of minerals which is granted (or deemed to be granted) subject to a condition that the development to which it relates must be begun before the expiration of a specified period after

Exclusion of certain planning permissions for winning and working of minerals from s. 38.

PART II

the completion of other development consisting of the winning and working of minerals which is already being carried out by the applicant for the planning permission.”.

Duration of
planning
permission.

24. The following section shall be inserted after section 41 of the 1972 Act—

“Limit of
duration of
planning
permission
for winning
and working
of minerals.

41A.—(1) Every planning permission for development consisting of the winning and working of minerals shall be subject to a condition as to the duration of the development.

(2) Except where a condition is specified under subsection (3) of this section the condition in the case of planning permission granted or deemed to be granted after the date of the commencement of section 24 of the Town and Country Planning (Minerals) Act 1981 is that the development must cease not later than the expiration of the period of sixty years beginning with the date of the permission.

(3) An authority granting planning permission after the date of the commencement of the said section 24 or directing after that date that planning permission shall be deemed to be granted may specify a longer or shorter period than sixty years, and if they do so, the condition is that the development must cease not later than the expiration of a period of the specified length beginning with the date of the permission.

(4) A longer or shorter period than sixty years may be prescribed for the purposes of subsections (2) and (3) of this section.

(5) The condition in the case of planning permission granted or deemed to have been granted before the commencement of section 24 of the Town and Country Planning (Minerals) Act 1981 is that the development must cease not later than the expiration of the period of sixty years beginning with the date of the commencement of that section.

(6) A condition to which planning permission for development consisting of the winning and working of minerals is subject by virtue of this section is not to be regarded for the purposes of this Act as a condition such as is mentioned in subsection (1)(b) of section 27 of this Act.

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(7) Where planning permission for development consisting of the winning and working of minerals is granted by the planning authority, any condition to which it is subject by virtue of this section is to be regarded for the purposes of section 33 of this Act as a condition imposed by a decision of the planning authority, and may accordingly be the subject of an appeal under that section.”

25. The following subsections shall be added at the end of section 42 of the 1972 Act (power to revoke or modify planning permission)— Orders revoking or modifying planning permission.

“ (5) An order under this section may include any such aftercare condition as the planning authority think fit if—

(a) it also includes a restoration condition ; or

(b) a restoration condition has previously been imposed in relation to the land by virtue of any provision of this Act.

(6) Subsections (3) to (19) of section 27A of this Act shall apply in relation to an aftercare condition so imposed as they apply in relation to such a condition imposed under that section.”

26. The following subsections shall be inserted after subsection (1) of section 49 of the 1972 Act (which empowers a planning authority to make orders, in the interests of the proper planning of their area, requiring that a use of land shall be discontinued or imposing conditions on the continuance of a use)— Discontinuance of use.

“ (1A) For the purposes of this section development consisting of the winning and working of minerals in, on or under any land is to be treated as a use of that land.

(1B) Subsection (1) of this section shall have effect as if—

(a) the words “ or

(c) that any plant or machinery used for the winning and working of minerals should be altered or removed,”

were added at the end of paragraph (b) ; and

(b) the words “ or plant or machinery ” were inserted after the words “ buildings or works ”, in the second place where those words occur.

(1C) Where development consisting of the winning and working of minerals is being carried out in, on or under any land, the conditions which an order under this section may impose include a restoration condition.

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(1D) An order under this section may include any such aftercare condition as the planning authority think fit if—

- (a) it also includes a restoration condition ; or
- (b) a restoration condition has previously been imposed in relation to the land by virtue of any provision of this Act.

(1E) Subsections (3) to (8) and (11) to (19) of section 27A of this Act shall apply in relation to an aftercare condition imposed under this section as they apply in relation to such a condition imposed under that section.

(1F) In a case where—

- (a) the use specified is a use for agriculture ; and
- (b) the land was in use for agriculture immediately before development consisting of the winning and working of minerals began to be carried out in, on or under it or had previously been used for agriculture and had not been used for any authorised purpose since its use for agriculture ceased ; and
- (c) the planning authority is aware of or can readily ascertain the physical characteristics of the land when it was last used for agriculture,

the land is brought to the required standard when its physical characteristics are restored, so far as it is practicable to do so, to what they were when it was last used for agriculture.

(1G) In any other case where the use specified is a use for agriculture the land is brought to the required standard when it is reasonably fit for that use.”.

Orders prohibiting resumption of operations and orders relating to suspension of operations.

27. The following sections shall be inserted after section 49 of the 1972 Act—

“ Prohibition of resumption of winning and working of minerals.

49A.—(1) Where it appears to the planning authority—

- (a) that development consisting of the winning and working of minerals has been carried out in, on or under any land ; but
- (b) that it has permanently ceased,

the planning authority may by order—

- (i) prohibit the resumption of such development ; and
- (ii) impose, in relation to the site, any such requirement as is specified in subsection (3) of this section.

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(2) The planning authority may assume that development consisting of the winning and working of minerals has permanently ceased only when—

- (a) no such development has been carried out to any substantial extent anywhere in, on or under the site of which the land forms part for a period of at least two years; and
- (b) it appears to the planning authority on the evidence available to them at the time when they make the order, that resumption of such development in, on or under the land is unlikely.

(3) The requirements mentioned in subsection (1) of this section are—

- (a) a requirement to alter or remove plant or machinery which was used for the purpose of the winning and working of minerals or for any purpose ancillary to that purpose;
- (b) a requirement to take such steps as may be specified in the order, within such period as may be so specified, for the purpose of removing or alleviating any injury to amenity which has been caused by the winning and working of minerals, other than injury due to subsidence caused by underground mining operations;
- (c) a requirement that any condition subject to which planning permission for development consisting of the winning and working of minerals was granted or which has been imposed by virtue of any provision of this Act shall be complied with; and
- (d) a restoration condition.

(4) An order under this section may include any such aftercare condition as the planning authority think fit if—

- (a) it also includes a restoration condition;

or

- (b) a restoration condition has previously been imposed in relation to the site by virtue of any provision of this Act.

(5) Subsections (3) to (8) and (11) to (19) of section 27A of this Act shall apply in relation to an aftercare condition imposed under this section as they

PART II

apply in relation to such a condition imposed under that section.

(6) In a case where—

- (a) the use specified is a use for agriculture ;
and
- (b) the land was in use for agriculture immediately before development consisting of the winning and working of minerals began to be carried out in, on or under it or had previously been used for agriculture and had not been used for any authorised purpose since its use for agriculture ceased ;
and
- (c) the planning authority is aware of or can readily ascertain the physical characteristics of the land when it was last used for agriculture,

the land is brought to the required standard when its physical characteristics are restored, so far as it is practicable to do so, to what they were when it was last used for agriculture.

(7) In any other case where the use specified is a use for agriculture the land is brought to the required standard when it is reasonably fit for that use.

(8) An order under this section shall not take effect unless it is confirmed by the Secretary of State, either without modification or subject to such modifications as he considers expedient.

(9) Where a planning authority submit an order under this section to the Secretary of State for his confirmation under this section, that authority shall serve notice of the order on any person who is an owner or occupier of any of the land to which the order relates, and on any other person who in their opinion will be affected by the order ; and if within the period specified in that behalf in the notice (not being less than twenty-eight days from the service thereof) any person on whom the notice is served so requires, the Secretary of State, before confirming the order, shall afford to that person and to the planning authority an opportunity of appearing before, and being heard by, a person appointed by the Secretary of State for that purpose.

(10) Where an order under this section has been confirmed by the Secretary of State, the planning authority shall serve a copy of the order on every

person who was entitled to be served with notice under subsection (9) of this section.

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(11) On an order under this section taking effect any planning permission for the development to which the order relates shall cease to have effect but without prejudice to the power of the planning authority, on revoking the order, to make a further grant of planning permission for development consisting of the winning and working of minerals.

Orders after
suspension
of winning
and working
of minerals.

49B.—(1) Where it appears to the planning authority—

(a) that development consisting of the winning and working of minerals has been carried out in, on or under any land ; but

(b) that it has been temporarily suspended,
the planning authority may by order (in this Act referred to as a “suspension order”) require that steps shall be taken for the protection of the environment.

(2) The planning authority may assume that development consisting of the winning and working of minerals has been temporarily suspended only when—

(a) no such development has been carried out to any substantial extent anywhere in, on or under the site of which the land forms part for a period of at least twelve months ; but

(b) it appears to the planning authority, on the evidence available to them at the time when they make the order, that a resumption of such development in, on or under the land is likely.

(3) In this Act “steps for the protection of the environment” means steps for the purpose—

(a) of preserving the amenities of the area in which the land in, on or under which the development was carried out is situated during the period while operations for the winning and working of minerals in, on or under it are suspended ;

(b) of protecting that area from damage during that period ; or

(c) of preventing any deterioration in the condition of the land during that period.

PART II

(4) A suspension order shall specify a period, commencing with the date on which it is to take effect, within which any step required for the protection of the environment is to be taken, and may specify different periods for the taking of different steps.

(5) At any time when a suspension order is in operation the planning authority may by order (in this Act referred to as a "supplementary suspension order") direct—

- (a) that steps for the protection of the environment shall be taken in addition to or in substitution for any of the steps which the suspension order or a previous supplementary suspension order specified as required to be taken ; or
- (b) that the suspension order or any supplementary suspension order shall cease to have effect.

Confirmation and coming into operation of suspension orders.

49C.—(1) Without prejudice to section 49D of this Act, a suspension order or supplementary suspension order (other than a supplementary suspension order revoking a suspension order or a previous supplementary suspension order and not requiring that any fresh step shall be taken for the protection of the environment) shall not take effect until it is confirmed by the Secretary of State, either without modification or subject to such modifications as he considers expedient.

(2) Subsection (9) of section 49A of this Act shall have effect in relation to a suspension order or supplementary suspension order submitted to the Secretary of State for his confirmation as it has effect in relation to an order submitted to him for his confirmation under that section.

(3) Where a suspension order or supplementary suspension order has been confirmed by the Secretary of State, the planning authority shall serve a copy of the order on every person who was entitled to be served with notice by virtue of subsection (2) of this section.

Registration of suspension orders.

49D. No order under section 49A or 49B of this Act shall take effect until it is registered either—

- (a) in a case where the land affected by the order is registered in that Register, in the Land Register of Scotland, or

- (b) in any other case, in the appropriate division of the General Register of Sasines.

Reviews of
suspension
orders.

49E.—(1) It shall be the duty of a planning authority—

(a) to undertake in accordance with the following provisions of this section reviews of suspension orders and supplementary suspension orders which are in operation in their area ; and

(b) to determine whether they should make, in relation to any land to which a suspension order or supplementary suspension order applies,—

(i) an order under section 49A of this Act ; or

(ii) a supplementary suspension order.

(2) The first review of a suspension order shall be undertaken not more than five years from the date on which the order takes effect.

(3) Each subsequent review shall be undertaken not more than five years after the previous review.

(4) If a supplementary suspension order is in operation for any part of the area for which a suspension order is in operation, they shall be reviewed together.

(5) If a planning authority have made a supplementary suspension order which requires the taking of steps for the protection of the environment in substitution for all the steps required to be taken by a previous order under section 49B of this Act, the authority shall undertake reviews of the supplementary suspension order in accordance with subsections (6) and (7) of this section.

(6) The first review shall be undertaken not more than five years from the date on which the order takes effect.

(7) Each subsequent review shall be undertaken not more than five years after the previous review.

(8) The duty to undertake reviews imposed by this section is in addition to and not in substitution for the duties imposed by section 251A of this Act.

PART II

Resumption
of winning
and working
of minerals
after
suspension
order.

49F.—(1) Nothing in a suspension order or a supplementary suspension order shall prevent the recommencement of development consisting of the winning and working of minerals in, on, or under the land in relation to which the order is in effect; but no person shall recommence such development without first giving the planning authority notice of his intention to do so.

(2) A notice under subsection (1) of this section shall specify the date on which the person giving the notice intends to recommence development consisting of the winning and working of minerals.

(3) The planning authority shall revoke the order if development consisting of the winning and working of minerals has recommenced to a substantial extent in, on or under the land in relation to which the order is in effect.

(4) If the authority do not revoke the order before the end of the period of two months from the date specified in the notice under subsection (1) of this section, the person who gave that notice may apply to the Secretary of State for the revocation of the order.

(5) Notice of an application under subsection (4) of this section shall be given by the applicant to the planning authority.

(6) If he is required to do so by the person who gave the notice or by the planning authority, the Secretary of State, before deciding whether or not to revoke the order, shall afford to that person and to the planning authority an opportunity of appearing before, and being heard by, a person appointed by the Secretary of State for the purpose.

(7) If the Secretary of State is satisfied that development consisting of the winning and working of minerals in, on or under the land has recommenced to a substantial extent, he shall revoke the order.

(8) If the Secretary of State revokes an order by virtue of subsection (7) of this section, he shall give notice of its revocation to the person who applied to him for the revocation and to the planning authority.

49G. The provisions of section 181 of the Local Government (Scotland) Act 1973 shall apply in relation to the provisions of sections 49A and 49B of this Act as they apply in relation to the provisions of sections 42 and 49 of this Act."

1973 c. 65.

Powers of
regional
planning
authorities
regarding
orders under
sections 49A
or 49B.

28. The following section shall be substituted for section 100 of the 1972 Act—

“Enforcement of orders under sections 49, 49A and 49B.

PART II
Enforcement of orders.

100.—(1) Any person who, without the grant of planning permission in that behalf,—

(a) uses land, or causes or permits land to be used,—

(i) for any purpose for which an order under section 49 of this Act has required that its use shall be discontinued ; or

(ii) in contravention of any condition imposed by such an order by virtue of subsection (1) of that section ; or

(b) resumes, or causes or permits to be resumed, development consisting of the winning and working of minerals the resumption of which an order under section 49A of this Act has prohibited ; or

(c) contravenes, or causes or permits to be contravened, any such requirement as is specified in section 49A(3) or (4) of this Act,

shall be guilty of an offence.

(2) Any person who contravenes any requirement of a suspension order or a supplementary suspension order or who causes or permits any requirement of such an order to be contravened shall be guilty of an offence.

(3) Any person guilty of an offence under this section shall be liable—

(a) on summary conviction to a fine not exceeding the statutory maximum ; and

(b) on conviction on indictment, to a fine.

(4) If—

(a) any step required by an order under section 49 of this Act to be taken for the alteration or removal of any buildings or works or any plant or machinery ; or

(b) any step required by an order under section 49A of this Act to be taken—

(i) for the alteration or removal of plant or machinery ; or

(ii) for the removal or alleviation of any injury to amenity ; or

PART II

(c) any step for the protection of the environment required to be taken by a suspension order or a supplementary suspension order, has not been taken within the period specified in the order, or within such extended period as the planning authority may allow, the planning authority may enter the land and take that step, and may recover from the person who is then the owner of the land any expenses reasonably incurred by them in doing so.

(5) A planning authority taking any step in terms of subsection (4) of this section may sell any materials removed by them from any land unless those materials are claimed by the owner within three days of their removal by the planning authority; and where such materials have been sold the planning authority shall, after deducting therefrom any expenses recoverable by them from the owner, pay him the proceeds of such sale.

(6) It shall be a defence for a person charged with an offence under this section to prove that he took all reasonable measures and exercised all due diligence to avoid commission of the offence by himself or by any person under his control.

(7) If any person charged with an offence under this section alleges that the commission of the offence was due to the act or default of another person or due to reliance on information supplied by another person, the person charged shall not, without the leave of the court, be entitled to rely on the defence unless, within a period ending seven clear days before the hearing, he has served on the prosecutor a notice in writing giving such information identifying or assisting in the identification of the other person as was then in his possession."

Compensation

Special compensation in respect of orders under s. 42 relating to mineral working.

29. The following section shall be inserted after section 153 of the 1972 Act—

"Compensation for certain orders under s. 42 relating to mineral working to be on special basis

153A.—(1) Where mineral compensation requirements are satisfied in relation to an order under section 42 of this Act, section 153 of this Act shall have effect subject to mineral compensation modifications.

PART II

(2) Subject to subsection (4) of this section, mineral compensation requirements are satisfied in relation to an order under section 42 of this Act if—

(a) the order modifies planning permission for development consisting of the winning and working of minerals ; and

(b) the order does not—

(i) impose any restriction on the winning and working of minerals ; or

(ii) modify or replace any such restriction subject to which the planning permission was granted or which was imposed by a relevant order ; and

(c) the planning authority carried out special consultations about the making and terms of the order before they made it ; and

(d) either—

(i) the permission was granted not less than five years before the date of the order ; or

(ii) the conditions specified in subsection (3) of this section are satisfied.

(3) The conditions mentioned in subsection (2)(d) of this section are—

(a) that the planning permission which the order modifies was granted before the commencement of section 27A of this Act ; and

(b) that the order—

(i) imposes an aftercare condition ; and

(ii) does not impose any other condition.

(4) Where the planning authority—

(a) make an order under section 42 of this Act modifying planning permission for development consisting of the winning and working of minerals ; and

(b) have previously made a relevant order or orders,

mineral compensation requirements are not satisfied in relation to the order mentioned in paragraph (a) of this subsection unless it was made more than five years after the order previously made or the last such order.”.

PART II
Compensation where resumption of mineral working is prohibited or suspension order is made.

30. The following sections shall be inserted after section 159 of the 1972 Act—

"Compensation in respect of orders under s. 49A and suspension orders.

159A. Subject to section 159B of this Act, the provisions of section 159 of this Act shall apply where an order is made under section 49A of this Act or a suspension order or supplementary suspension order is made as they apply where an order is made under section 49 of this Act.

Compensation on special basis.

159B.—(1) Where mineral compensation requirements are satisfied in relation to an order under section 49 or 49A of this Act, or in relation to a suspension order or supplementary suspension order, section 159 or 159A of this Act shall have effect subject to mineral compensation modifications.

(2) Subject to subsection (6) of this section, mineral compensation requirements are satisfied in relation to an order under section 49 of this Act if—

(a) the order—

(i) imposes any conditions on the continuance of the use of land for the winning and working of minerals ; or

(ii) requires that any buildings, works, plant or machinery used for the winning and working of minerals shall be altered or removed ; and

(b) the conditions specified in subsection (5) of this section are satisfied.

(3) Subject to subsection (6) of this section, mineral compensation requirements are satisfied in relation to an order under section 49A of this Act if the conditions specified in subsection (5)(a) and (c) of this section are satisfied.

(4) Mineral compensation requirements are satisfied in relation to a suspension order or supplementary suspension order if the conditions specified in subsection (5)(c) of this section are satisfied.

(5) The conditions mentioned in subsections (2)(b), (3) and (4) of this section are—

(a) that development consisting of the winning and working of minerals began not less than five years before the date of the order ;

(b) that the order does not—

(i) impose any restriction on the winning and working of minerals ; or

PART II

- (ii) modify or replace any such restriction subject to which planning permission for development consisting of the winning and working of minerals was granted or which was imposed by a relevant order ; and
- (c) that the planning authority carried out special consultations about the making and terms of the order before they made it.
- (6) Where the planning authority—
 - (a) make—
 - (i) an order under section 49 of this Act which imposes any such condition or makes any such requirement as is mentioned in subsection (2)(a) of this section ; or
 - (ii) an order under section 49A of this Act ; and
 - (b) have previously made a relevant order or orders,

mineral compensation requirements are not satisfied in relation to the order mentioned in paragraph (a) of this subsection unless it was made more than five years after the order previously made or the last such order.”.

31. The following sections shall be inserted after section 167 of the 1972 Act:—

Mineral compensation modifications.

“Regulations as to compensation in respect of orders relating to mineral working—meaning of “mineral compensation modifications”.

167A.—(1) The Secretary of State may by regulations made with the consent of the Treasury direct that sections 153, 159, 167, 226, and 227 of this Act shall have effect, where mineral compensation requirements are satisfied, subject, in such cases as may be specified in the regulations, to such modifications as may be so specified.

(2) Any such regulations shall make provision as to circumstances in which compensation is not to be payable.

(3) Any such regulations shall make provision—

- (a) for the modification of the basis on which any amount to be paid by way of compensation is to be assessed ; or
- (b) for the assessment of any such amount on a basis different from that on which it would otherwise have been assessed.

PART II

(4) Regulations made by virtue of subsection (3) (a) of this section in relation to compensation where an order is made under section 42 or 49 of this Act shall provide that the amount of the compensation under section 153 or, as the case may be, 159 of this Act, shall be reduced—

(a) by the prescribed sum ; or

(b) by a sum equal to the prescribed percentage of the appropriate sum.

(5) In subsection (4) of this section “the appropriate sum” means the product of the sum which represents the annual value of the right to win and work minerals at the site to which the order relates and a multiplier which the Secretary of State considers appropriate having regard to the period at the expiration of which the minerals in, on or under that site might be expected to be exhausted if they continued to be extracted at the rate which has been assumed for the purpose of calculating the annual value of the right to win and work them.

(6) The prescribed percentage shall not be more than 10 per cent.

(7) The annual value of the right to win and work the minerals shall be calculated in the prescribed manner.

(8) In this Act “mineral compensation modifications” means modifications specified in regulations made by virtue of this section.

(9) Regulations under this section—

(a) may make different provision for different cases ; and

(b) may include such incidental or supplementary provisions as the Secretary of State considers expedient.

(10) No regulations under this section shall have effect until approved by a resolution of each House of Parliament.

(11) Before making any such regulations the Secretary of State shall consult such persons or bodies of persons as appear to him to be representative—

(a) of persons carrying out mining operations ;

(b) of owners of interests in land containing minerals ; and

(c) of planning authorities.

Orders relating to mineral working—meaning of “special consultations”.

167B.—(1) Any reference in this Act to a planning authority carrying out special consultations about the making and terms of an order before they make it is a reference to their carrying out consultations—

(a) subject to subsection (2) of this section, with any person who has an interest—

(i) in the land to which the order will relate ; or

(ii) in minerals in, on or under that land ; and

(b) with the relevant authority or authorities.

(2) The duty to consult imposed by subsection (1)(a) of this section is only a duty to consult persons whom the planning authority are able to trace by taking reasonable steps to do so.

(3) In subsection (1)(b) above “the relevant authority or authorities” means—

(a) if the planning authority is a district planning authority, the regional planning authority in whose area the land to which the order will relate is situated ; and

(b) if the planning authority is a regional planning authority, the district planning authority or authorities in whose area or areas the land to which the order will relate is situated.

Orders relating to mineral working—meaning of “restriction on the winning and working of minerals” and “relevant order”.

167C.—(1) In this Act “restriction on the winning and working of minerals” means—

(a) in relation to planning permission granted for development consisting of the winning and working of minerals, a condition subject to which the permission was granted and which made provision to which this section applies ; and

(b) in relation to an order under section 42 or 49 of this Act, a term of the order which made such provision.

(2) The provision to which this section applies is—

(a) any provision—

(i) for the period before the expiration of which development consisting of the winning and working of minerals was to be begun ;

(ii) for the size of the area to be used for the winning and working of minerals ;

PART II

PART II

(iii) for the depth to which operations for the winning and working of minerals were to extend ;

(iv) for the rate at which any particular mineral was to be extracted ;

(v) for the total quantity of minerals to be extracted ; or

(vi) for the period at the expiration of which the winning and working of minerals was to cease ;

(b) in relation to an order under section 42 or 49 of this Act, a term of the order making provision for any such matter as is mentioned in paragraph (a) of this subsection.

(3) In this Act "relevant order", in relation to any land, means an order under section 42, 49 or 49A of this Act."

Determination
of claims.

32. In subsection (1) of section 168 of the 1972 Act (determination of claims for compensation) after the words "this Act", in the third place where they occur, there shall be inserted the words "including any question of disputed compensation under section 153, 159, 167, 226 or 227 of this Act as modified by regulations under section 167A of this Act".

PART III

MISCELLANEOUS AND GENERAL

Pipelines

Right to
convey
minerals by
means of pipes.
1966 c. 4.

33.—(1) In section 2(1) of the Mines (Working Facilities and Support) Act 1966 (which so defines ancillary rights that the court may confer as to exclude rights to convey minerals by means of pipes) for the words "or conveyance of minerals (otherwise than by means of a pipe) or" there shall be substituted the words "minerals, or, to the extent provided by subsection (1A) below, their conveyance, or for the purpose of".

(2) The following subsection shall be inserted after that subsection:—

"(1A) The rights for the purpose of the conveyance of minerals mentioned in subsection (1)(b) above are—

(a) rights for the purpose of their conveyance otherwise than by means of a pipe ; and

(b) rights for the purpose of their conveyance by means of a pipe, where there was a right to convey them by means of the pipe before 1st January 1963."

General

PART III

34. The Town and Country Planning Act 1971 and the Local Government Act 1972 shall have effect subject to the amendments specified in Schedule 1 to this Act, and the Town and Country Planning (Scotland) Act 1972 shall have effect subject to the amendments specified in Schedule 2 to this Act (being, in each case, amendments consequential on the foregoing provisions of this Act).

Consequential amendments.

1971 c. 78.

1972 c. 70.

1972 c. 52.

35. This Act, except section 33 above, this section and section 36 below, shall come into operation on such day as the Secretary of State may by order made by statutory instrument appoint, and different days may be so appointed for different provisions and for different purposes of the same provision.

Commencement.

36.—(1) This Act may be cited as the Town and Country Planning (Minerals) Act 1981.

Citation and extent.

(2) This Act does not extend to Northern Ireland

SCHEDULES

Section 34.

SCHEDULE 1

CONSEQUENTIAL AMENDMENTS—ENGLAND AND WALES

1971 c. 78.

TOWN AND COUNTRY PLANNING ACT 1971

1. In section 30(2) (meaning of "planning permission granted for a limited period") for the word "Any" there shall be substituted the words "Subject to section 44A(6) of this Act, any".

2. In section 35(4) (provisions applying with modifications where applications for planning permission are referred to Secretary of State) for the words "and 30(1)" there shall be substituted the words ", 30(1) and 30A".

3. In section 36(5) (provisions applying with modifications in relation to an appeal to Secretary of State) for the words "and 30(1)" there shall be substituted the words ", 30(1) and 30A".

4. In section 164(1) (compensation where planning permission revoked or modified) for the word "Where" there shall be substituted the words "Subject to section 164A of this Act, where".

5. In section 170(1) (compensation in respect of orders under section 51) for the word "The" there shall be substituted the words "Subject to section 170B of this Act, the".

6. In subsection (2) of section 178 (which specifies the compensation to which the general provisions contained in that section apply) for the word "This" there shall be substituted the words "Subject to regulations under section 178A of this Act, this".

7. In subsection (1)(b) of section 238 (measure of compensation to statutory undertakers) after the words "51" there shall be inserted the words ", 51A or 51B".

8. In subsection (2) of section 242 (which specifies orders the validity of which is not to be questioned in any legal proceedings except as provided by Part XII) the following paragraphs shall be inserted after subsection (2)(b):—

"(ba) any order under section 51A of this Act ;

(bb) any order under section 51B of this Act ;".

9. In subsection (2)(a) of section 266 (which specifies orders which, in relation to land which for the time being is Crown land, may only be made with the consent of the appropriate authority) after the word "51," there shall be inserted the words "51A, 51B,".

10. In subsection (2) of section 276 (which specifies the orders in relation to which the Secretary of State has default powers) the following paragraphs shall be inserted after paragraph (b):—

"(ba) orders under section 51A of this Act ;

(bb) orders under section 51B of this Act ;"

11. In section 290(1) (interpretation)—

(a) the following shall be inserted after the definition of “advertisement” :—

“aftercare condition” has the meaning assigned to it by section 30A(2) of this Act ;

(b) the following shall be inserted after the definition of “development” :—

“development consisting of the winning and working of minerals” shall be construed in accordance with section 264(1A) of this Act ;

(c) the following shall be inserted after the definition of “means of access” :—

“mineral compensation modifications” has the meaning assigned to it by section 178A(8) of this Act ;

“mineral planning authority” —

(a) in respect of any site outside Greater London, has the meaning assigned to it by section 1(2B) of this Act ; and

(b) in respect of any site in Greater London, has the meaning assigned to it by paragraph 4B of Schedule 3 to this Act ;

“mineral-working deposit” has the meaning assigned to it by section 264(1A) of this Act ;

(d) the following shall be inserted after the definition of “purchase notice” :—

“relevant order” has the meaning assigned to it by section 178C(3) of this Act ;

(e) the following shall be inserted after the definition of “replacement of open space” :—

“restoration condition” has the meaning assigned to it by section 178B of this Act ;

“restriction on the winning and working of minerals” has the meaning assigned to it by section 178C(1) of this Act ;

“special consultations” has the meaning assigned to it by section 178B of this Act ;

“the statutory maximum” means the prescribed sum within the meaning of section 32 of the Magistrates’ Courts Act 1980 (£1,000 or another sum fixed by order under section 143 of that Act to take account of changes in the value of money) ;

(f) the following shall be inserted after the definition of “statutory undertaker” :—

“steps for the protection of the environment” has the meaning assigned to it by section 51B(3) of this Act ; and

SCH. 1

(g) the following shall be inserted after the definition of "stop notice":—

"suspension order" and "supplementary suspension order" have the meanings assigned to them by section 51B of this Act ;

1972 c. 70.

LOCAL GOVERNMENT ACT 1972

12. In paragraph 32(cd) of Schedule 16 (definition of "county matter") for the words "any condition imposed on a planning permission requiring the restoration of the land when the winning and working of minerals has ceased" there shall be substituted the words "a restoration condition or an aftercare condition".

Section 34.

SCHEDULE 2

CONSEQUENTIAL AMENDMENTS—SCOTLAND

TOWN AND COUNTRY PLANNING (SCOTLAND) ACT 1972

1. In section 27(2) (meaning of "planning permission granted for a limited period") for the word "Any" there shall be substituted the words "Subject to section 41A(6) of this Act, any".

2. In section 32(4) (provisions applying with modifications where applications for planning permission are referred to Secretary of State) for the words "and 27(1)" there shall be substituted the words ", 27(1) and 27A".

3. In section 33(5) (provisions applying with modifications in relation to an appeal to Secretary of State) for the words "and 27(1)" there shall be substituted the words ", 27(1) and 27A".

4. In section 153(1) (compensation where planning permission revoked or modified) for the word "Where" there shall be substituted the words "Subject to section 153A of this Act, where".

5. In section 159(1) (compensation in respect of orders under section 49) for the word "The" there shall be substituted the words "Subject to section 159B of this Act, the".

6. In subsection (2) of section 167 (which specifies the compensation to which the general provisions contained in that section apply) for the word "This" there shall be substituted the words "Subject to regulations under section 167A of this Act, this".

7. In subsection (1)(b) of section 227 (measure of compensation to statutory undertakers) after the words "49" there shall be inserted the words ", 49A or 49B".

8. In subsection (2) of section 231 (which specifies orders the validity of which is not to be questioned in any legal proceedings except as provided by Part XII) the following paragraphs shall be inserted after subsection (2)(b)—

"(ba) any order under section 49A of this Act ;

(bb) any order under section 49B of this Act ;"

9. In subsection (2)(a) of section 253 (which specifies orders which, in relation to land which for the time being is Crown land, may only be made with the consent of the appropriate authority) after the word "49" there shall be inserted the words "49A, 49B".

10. In subsection (2) of section 260 (which specifies the orders in relation to which the Secretary of State has default powers) the following paragraphs shall be inserted after paragraph (b):—

- "(ba) orders under section 49A of this Act ;
- (bb) orders under section 49B of this Act ;"

11. In section 275(1) (interpretation)—

- (a) the following shall be inserted after the definition of "advertisement"—

" "aftercare condition" has the meaning assigned to it by section 27A(2) of this Act ;"

- (b) the following shall be inserted after the definition of "development"—

" "development consisting of the winning and working of minerals" shall be construed in accordance with section 251(1A) of this Act ;"

- (c) the following shall be inserted after the definition of "means of access"—

" "mineral compensation modifications" has the meaning assigned to it by section 167A(3) of this Act ;

" "mineral-working deposit" has the meaning assigned to it by section 251(1A) of this Act ;"

- (d) the following shall be inserted after the definition of "purchase notice"—

" "relevant order" has the meaning assigned to it by section 167C(3) of this Act ;"

- (e) the following shall be inserted after the definition of "replacement of open space"—

" "restoration condition" has the meaning assigned to it by section 27A(2) of this Act ;

" "restriction on the winning and working of minerals" has the meaning assigned to it by section 167C(1) of this Act ;

" "special consultations" has the meaning assigned to it by section 167B of this Act ;

" "the statutory maximum" means the prescribed sum within the meaning of section 289B(6) of the Criminal Procedure (Scotland) Act 1975 ;"

- (f) the following shall be inserted after the definition of "statutory undertaker"—

" "steps for the protection of the environment" has the meaning assigned to it by section 49B(3) of this Act ;" ; and

SCH. 2

(g) the following shall be inserted after the definition of "stop notice"—

"“suspension order” and “supplementary suspension order” have the meanings assigned to them by section 49B of this Act ;”.